

9:30 AM

LINE: 1

25-CIV-09890

EMMA JESSICA TORGERSON VS. META PLATFORMS, INC.

EMMA JESSICA TORGERSON  
META PLATFORMS, INC.

PRO SE  
GUY TOPAZ

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**DEFENDANT META PLATFORMS, INC.'S DEMURRER TO COMPLAINT**

**TENTATIVE RULING:**

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On January 21, 2026, plaintiff filed her opposition to defendant's demurrer. Since that date, she has filed two supplemental briefs and several supplemental declarations. Plaintiff's supplemental filings are not authorized by the Code of Civil Procedure, and the court declines to consider them. The hearing on defendant's demurrer is continued to November 12, 2026. No later than nine court days before that date, plaintiff shall file a single opposition brief that does not exceed the 15-page limit set out in California Rules of Court, rule 3.1113(d). If defendant chooses to do so, it may file a reply to plaintiff's opposition no later than five court days before the hearing.

Any party who intends to contest the tentative ruling must email Dept. 2 Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Plaintiff shall prepare a written order repeating verbatim the tentative ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law. The Court alerts the parties to revised Local Rule 3.403(b)(iv) (amended effective January 1, 2024) regarding the wording of proposed orders.

9:30 AM

LINE: 2

25-CIV-07609

**ALYSON RUIZ, ON BEHALF OF HERSELF AND ALL OTHERS SIMILARLY SITUATED VS  
BOARDWALK AUTO CENTER, INC., A CALIFORNIA CORPORATION**

**ALYSON RUIZ, ON BEHALF OF HERSELF AND ALL OTHERS SIMILARLY  
SITUATED  
BOARDWALK AUTO CENTER, INC., A CALIFORNIA CORPORATION**

**JOSHUA S FALAKASSA  
MATTHEW J WAYNE**

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**DEFENDANT BOARDWALK AUTO CENTER, INC.'S MOTION TO COMPEL ARBITRATION**

**TENTATIVE RULING:**

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For the reasons stated below, Defendant Boardwalk Auto Center, Inc.'s ("Defendant") Motion to Compel Arbitration is **GRANTED**.

California Rules of Court, rule 3.1330 provides:

A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.

Thus, a party moving to compel arbitration may satisfy rule 3.1330 by attaching a copy of the arbitration agreement or by reciting the terms of the governing arbitration provision. (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793; *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.)

Defendant asserts that Plaintiff signed a binding arbitration agreement covering the claims asserted in this action. Defendant quotes the portion of the agreement addressing its scope, which provides that any claim, dispute, or controversy arising from Plaintiff's employment will be resolved through binding arbitration. Defendant also quotes the agreement's class and representative action waiver and the provision stating that the agreement is governed by the Federal Arbitration Act ("FAA").

In support of the motion, Defendant submits the declaration of Carol Arroyo, Defendant's Human Resources representative. Ms. Arroyo states that she is a custodian of records for Defendant's employee personnel records and files and is "readily familiar with the company's record keeping policies and procedures." (Arroyo Decl., ¶ 3.) She describes Defendant's onboarding and document-retention procedures and states that Defendant's Human Resources representatives "review each document with the employees, explain its